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Act No. 161 (H.932). An act relating to the regulation of forestry under Act 250

Subjects: Land use; conservation and development; Act 250; forestry

This act clarifies how logging and forestry is treated under the State land use and development law, also known as Act 250. It puts into the statute existing practice related to the exemption for logging and forestry. It clarifies that forestry does not include the conversion of land to a use that would not be exempt from Act 250. It also adds that if a parcel is devoted to logging or forestry and a portion of the parcel is proposed to be used for activity that would require an Act 250 permit, the Act 250 jurisdiction shall be limited to the area needed for the nonexempt activity; the rest of the parcel remains exempt. It also amends the definition of “wood products manufacturer” to strike log and pulp concentration yards. Prior to the enactment of this definition in 2022, they were considered part of logging and forestry, so they were exempt. Removing them from the definition restores their prior status as exempt from Act 250.

Effective Date: July 1, 2026